CITY OF WALNUT CREEK

Preliminary Review Team (PRT) Comment Document

Planning • Building • Engineering • Transportation

PRT No. 19-014

Proposal/Project Information:

PRT Meeting Date:	July 23, 2019
Site Address (APN):	1424 – 1426 S. Main Street Walnut Creek, CA 94596 APN:174-1
General Plan Designation:	Multi-Family Low (MFL): 6.1-14 du/ac
Zoning District:	Multi-Family Residential, M-3
Project Description:	Request to add a second residential unit to the property at 2139 Hillside Avenue. The property currently contains a single family home, which would remain with this application for a total of 2 units on-site.
Applicant Name and Address:	Hamed Adibnatanzi 1426 N. Main Street Walnut Creek, CA 94596
Applicant Phone Number:	(925)876-4808
Applicant Email:	jerry@jnlloving.com

The PRT process focuses on basic issues such as the appropriateness of the proposed land use, the intensity of development, design concepts, fundamental safety and code requirements and what types of permits will be required. The comments provided from the PRT are tentative and should not be construed as final. More detailed comments may be generated during the formal application process.

The following comments are preliminary based upon the information provided and in no way guarantee approval of the project. Please see attached Preliminary Review (PRT) Information sheet describing in more detail the purpose of PRT, time frames and scope of review.

Planning Division (Chip Griffin, Associate Planner, 925-943-5899 ext. 2678)

Planning Processes and Permits Required:

☒	**Design Review**	☒	**Conditional Use Permit**
☒	**General Plan Amendment**	☐	**Minor Use Permit**
☒	**Environmental Review**	☐	**Variance**
☐	**Tree Removal Permit**	☐	**Hillside Performance Standards**
☐	**Tree Dripline Encroachment Permit**	☐	**Planned Development Permit**
☐	**Zoning Amendment (Rezoning)**	☐	**Tentative Map/Subdivision**
☐	**Large Family Daycare**	☐	**Other:**

Entitlements:

As proposed, the project would require the following entitlements:

- General Plan Amendment, Major Setback – City Council (Options B & C)
- Conditional Use Permit - Planning Commission (All options)
- Design Review - Design Review Commission (All options)

Comments:

1. The land use designation for the site is General Retail (GR) and is intended for one-stop-shop businesses that rely on customers arriving by auto and provide on-site parking. Uses include discount merchandise stores, financial institutions, hardware stores, hotels, nurseries, restaurants, and shopping centers. Ground floor retail is encouraged; offices may be allowed on upper floors.

2. The site is zoned Central Retail (C-R). The purpose of the Central Retail zone is to allow a mix of commercial development, in the core area, on a scale that is less intensive than development in the central pedestrian retail area. The intent is to encourage a wide variety of retail establishments along with some limited office development. The C-R zone generally surrounds the downtown pedestrian retail zone. It serves approximately the same function as the pedestrian retail area except that in most cases, each business will have its own parking lot, allowing for more destination oriented uses.

3. The upper level multi-family, residential use is conditionally permitted in areas designated as Mixed Use Commercial Emphasis (MU-C) or Mixed Use

Residential Emphasis (MU-R) by the Walnut Creek General Plan in all other General Plan land use classifications if at least 90 percent of the dwelling units are restricted units for low or very low income households, **and in areas where multiple family residential uses are allowed pursuant to a specific plan**; otherwise not permitted. In this case, the site is located within the Specific Plan 7 boundary.

4. The proposed options recognize the General Plan Setback designation of Major Setback – 20-30 feet with an average of 25 feet. Generally, staff would not encourage the pursuit of General Plan Amendment (GPA). That said, amendments to the G.P. setbacks are the most common, and typically approved GPA's.

5. The project description indicates that the project will not disturb the existing structure where clearly it does. Show any revisions to the interior or exterior of the existing building in both plan and elevation.

6. Staff suggests exploring changing the existing building exterior that will remain to the same architectural style of the addition. The result should not indicate two different architectural styles where there is clearly a modern addition to an older building.

7. The proposed elevations do not seem to be consistent with the floor plans. Please reconcile.

8. The project data for each option shows the existing building (a one-story building) as 3,727 square feet with the proposed additions range from 1,792 s.f to 3,216 s.f. Staff believes that the areas shown are for the ground floor only based on comparison to existing building. If so, the parking requirements as shown on the PRT plans are not accurate and will need to be revised. In any case, given the GR Land Use designation and the C-R Zoning, it is unlikely staff could support a parking reduction for this property.

9. Provide a landscape plan.

10. Each unit shall include 200 cubic feet storage. The private storage space for a residential unit shall be weatherproofed and lockable private storage space in addition to guest, linen, pantry and clothes closets customarily provided. Such space may be provided in any location approved by the Community Development Department, but shall not be divided into two or more locations

11. An arborist report may be required.

Feedback Sought:

- **Residential Second Floor –** As shown above, the site is located within Specific Plan 7 boundary, and the specific plan states that multi-family use is would be allowed. The C-R Zoning regulation further state that upper level M-F Residential use would be conditionally allowed in the a specific plan area. Therefore the CUP findings shown below would be required of the Planning Commission:

  10-2.4.605 Findings.
  No conditional use permit may be granted unless the following findings are made:
  1. That the use, including any conditions imposed, is consistent with the general plan, any applicable specific plan and this chapter;
  2. That the proposed use, including any conditions imposed, will not be detrimental to the public health, safety or welfare; and
  3. Any findings required by the land use regulations for the zoning district within which the property subject to the use is located.

- **Setback Variance –** The C-R development regulations do not include any setback requirements therefore, no variance is required. However, two of the Options are in violation of the General Plan Building Setbacks, Figure 11. Core Area Building Setbacks. In this case, a General Plan Amendment (GPA) would be required. GPA's are for the consideration of the City Council. Staff would need more information in order to provide a recommendation on the GPA.

- **Parking Study –** Provide an onsite circulation and parking study to address the issues brought by Engineering (below). In addition, any request for a parking reduction will need a full study in regards to potential parking impacts on and offsite.

- **Developer Fee Estimate –**
  Besides the submittal fees outlined below, the project would be subject to the following:

  1. Traffic Impact Fee: This fee is charged based on the delta of new trips generated by the project. At this time, each "trip" is $3,739.
  2. Inclusionary Housing: This fee is charged for new housing units. The current fee is $18.34 per foot.
  3. Public Art Fee: This fee is charged at 1% of the construction cost.

Submittal Requirements:

a. Signed Application and Statement of Understanding (no electronic signatures).

b. $16,605 ($4,000 General Plan Amendment + 2,500 Conditional Use Permit + $10,000 Design Review + $35 entitlement fee x3).
c. Six sets of full size plans; two of the five with color elevations
d. Electronic PDF of plan sets.
e. Color and Material sample board.
f. Project narrative describing scope of work.

Engineering Requirements

Tentative Map / Subdivision	N	Construct/Improve Project Frontage	Y
Site Development Permit	N	Comply with Off-Street Parking Stds	Y
Encroachment Permit	M	Provide Grading and Drainage Plan	Y
"C.3" Stormwater Regs Apply	C3i	Project within Flood Zone	N

1. The Project is applying for a Conditional Use Permit; as a result, the Project is subject to frontage improvements per section 9-9.205 of the Municipal Code. The frontage improvements include but are not limited to the installation of a new 10 ft. wide sidewalk (per the City's General Specific Plan), driveway, utility relocation, pavement widening, street lights, curb and gutter along South Main Street.

2. This project would require an encroachment permit for the construction of frontage improvements.

3. This project would be required to meet the requirements of the City Off-street Parking Standards. City off-street parking standards require a 10' minimum distance from the back of sidewalk to the first stall. All three options are showing only a 5' distance to the first stall.

4. The parking stalls at the south side of the building narrows the drive aisle and cannot be proposed at this location unless an access easement from the property owner to the south is obtained. Similarly, the ADA parking stall adjacent to the southern driveway entrance does not have the minimum 25 ft. back up clearance and cannot be proposed at this location unless an access easement from the property owner to the south is obtained.

5. Options B & C propose making the southern driveway one way only. This would need to be studied further and would require approval from the adjacent property owner.

6. This project would be classified as a Small Land Development Project under

provision c.3.i of the City's Municipal Regional Stormwater Permit with the State Water Board as it proposes to create/replace between 2,500 and 10,000 square feet of impervious surface. Refer to Appendix C of the Contra Costa County Clean Water Program *Stormwater C.3 Guidebook, 7th Edition* for additional information.

7. This project requires review from Central Contra Costa Sanitary District (CCCSD). For Option B, confirm with CCCSD that the clearance between the proposed building edge and existing sewer easement line is acceptable.

8. SB 7 requires water use to be sub-metered for multiunit or mixed-use residential projects. The project should allow sufficient space for a private sub-meter system on private property.

9. Exhibit G1 notes a 15 ft. right-of-way dedication to the City; however, per the City's GIS system the property line already reflects such a dedication. Provide an ALTA survey and title report to confirm the property line boundaries and easements. The right-of-way/property line shall be 50 ft. from the street centerline in order to meet the 100 ft. future street setback for South Main Street and accommodate for the 10 ft. wide sidewalk.

10. The existing trash enclosure may need to be resized to accommodate additional volumes and waste streams (trash, recycle, organics).

11. This project is not located within a Flood Zone.

12. This project is not located within a County Drainage Area.

Traffic Engineering Division (Yun Na Rhee, 925-943-5899 ext. 2219)

1. Option A is preferable. For all options applicant needs to indicate how being under-parked will be addressed.

2. Also, indicate where loading would occur for moving vehicles, FedEx, garbage, etc.

If you have any further questions or require clarification on these comments, please call or e-mail me at the number and address listed below. Alternatively, you may contact the commenting staff listed above.

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